

		result, the distribution of the settlement funds to the class members and the aggrieved employees. 2. The parties did not submit an exclusion form for Phuong Thuy Phung. See Islas Decl. (ROA 183) ¶ 8 & Ex. B. One of the documents attached as part of Exhibit B to the Islas Declaration is unsigned and does not contain a name. The parties are ordered to submit a declaration from the settlement administrator <u>by September 10, 2026</u> addressing this discrepancy. 3. The parties are ordered to submit a revised proposed order <u>by September 10, 2026</u> (stating the above amounts). The revised proposed order should also state that the settlement administrator informed the court that no objections or workweek disputes were received. The revised proposed order should include the following statement: "The court hereby enters judgment in accordance with the Settlement Agreement, the July 24, 2025 Order Granting Preliminary Approval (ROA 145), and this Order and Judgment." The final accounting hearing is scheduled for <u>September 2, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Castillo v. CTC Global Corporation 2022-01292774	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$300,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$90,000.00 for attorneys' fees (not to exceed); \$15,000.00 for attorneys' costs (not to exceed); \$8,000.00 for settlement administration fees (not to exceed); and \$25,000.00 total PAGA penalties (\$18,750.00 to LWDA). Plaintiff is ordered to file and serve <u>by September 10, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; notice packet (in all necessary languages)). Superseded and duplicative copies of the notice packet should not be attached to the proposed order as exhibits. Only the operative copy of the

		notice packet (in all languages) should be attached to the proposed order as an exhibit (together with one copy of the settlement agreement and one copy of each amendment to the settlement agreement). The parties are also ordered to file and serve <u>by September 10, 2026</u> an amendment to the settlement agreement addressing the following: 1. In the first amendment to the settlement agreement, the parties include paragraph 5.3 twice and it states different things. In the same amendment, the parties revised the title of paragraph 5.3 to have different (contradictory) titles. The parties must prepare a second amendment to the settlement agreement that states one version of paragraph 5.3 that (i) contains the correct title and (ii) addresses the issues identified in the court's January 8, 2026 order (ROA 138). The final approval hearing is scheduled for <u>January 21, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
4	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Cross-complainant Arthur C. Cohen's Motion to Strike and Tax Costs Claimed by Cross-defendant James Pickell</u> Cross-complainant Arthur C. Cohen moves to strike and tax \$603,817.18 in costs claimed by cross-defendant James Pickell. For the following reasons, Cohen's motion is granted in part and denied in part. Pursuant to stipulation, the parties agreed to present the claims in plaintiffs Preston Clark and Growthpoint Global, Inc.'s third amended complaint first, followed by the claims in Cohen's third amended cross-complaint. ROA 2615. Following a bench trial, the court found in Pickell's favor on plaintiffs' third amended complaint and Cohen's third amended cross-complaint. ROA 3354. The court entered judgment on March 12, 2026. ROA 3366. Pickell filed and served a costs memorandum on March 16, 2026 (ROA 3378), by which Pickell seeks \$627,586.91 in claimed costs from Cohen. A prevailing party is usually entitled as a matter of right to recover costs reasonably necessary to the conduct of the litigation. Cal. Civ. Proc. Code §§ 1032(b), 1033.5(c)(2). A prevailing party "includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." Civ. Proc. Code § 1032(a)(4). Section 1032(a)(1) defines "[c]omplaint" as including a cross-complaint, and section